

MUTUAL NON-DISCLOSURE AGREEMENT (APPROVED TEMPLATE)

Approved template v3.2 - Owner: Legal Operations - Governing law: State of Washington, USA

Use for pre-contract discussions. Do not modify **bold** standard clauses without Legal approval. Placeholders in {{double braces}} are filled at drafting time.

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of {{effective_date}} by and between **Contoso Global, Inc.** ("Contoso") and {{counterparty_name}} ("Counterparty").

1. Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by one party to the other, whether orally, in writing, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential.

2. Obligations

Each party shall (a) protect the other's Confidential Information using the same degree of care it uses for its own, and no less than reasonable care; and (b) not disclose it to any third party without prior written consent.

3. Term

This Agreement remains in effect for two (2) years from the Effective Date. Confidentiality obligations survive for three (3) years after disclosure.

4. Governing Law

This Agreement is governed by the laws of the State of Washington, USA, without regard to its conflict-of-laws principles.

5. Limitation of Liability

Neither party's aggregate liability under this Agreement shall exceed USD 100,000.

6. Return of Materials

Upon request, each party shall return or destroy the other's Confidential Information and, on request, certify such destruction in writing.

7. No License

No license or intellectual-property right is granted except the limited right to use Confidential Information for the Purpose.

Signatures

Contoso Global, Inc. _____ {{counterparty_name}} _____